

VENDOR SERVICE CONTRACT

DataSync Solutions LLC & Meridian Retail Group

SCOPE OF SERVICES

DataSync Solutions LLC ('Vendor') shall provide enterprise data integration, ETL pipeline management, and real-time analytics dashboards to Meridian Retail Group ('Client') for use across its 14 retail locations and e-commerce platform.

COMPENSATION AND PRICING STRUCTURE

Services are billed on a per-seat SaaS model at \$320 per user per month, covering up to 50 named users. Overages above 50 users are billed at \$380 per additional user per month. Annual prepayment receives a 12% discount.

PAYMENT SCHEDULE

All invoices are due within 45 days of issuance. Client may dispute invoice line items within 10 business days of receipt. Undisputed amounts must be paid in full by the due date.

TERM, EXPIRATION AND RENEWAL

This contract is effective as of September 1, 2024, with a fixed term expiring on July 15, 2026. Renewal must be negotiated and executed in writing no later than 30 days prior to expiration. This contract does not auto-renew.

SERVICE LEVEL AGREEMENT (SLA)

Vendor guarantees platform availability of 98.5% per calendar month, excluding pre-announced maintenance windows not exceeding 4 hours per month.

PENALTIES AND REMEDIES: In the event monthly uptime falls below 98.5%, Client shall receive a service credit equal to 8% of the monthly subscription fee for each full percentage point below the guaranteed threshold, up to a maximum of 25% of the monthly fee.

TERMINATION

Either party may terminate for convenience upon 45 days written notice. Termination for cause (material breach unremedied after 15 days notice) is effective immediately.

GOVERNING LAW AND JURISDICTION

This Agreement is governed by the laws of the State of New York. The parties consent to exclusive jurisdiction of the courts of New York County for any disputes arising hereunder.